

SEBI/CFD/ICDRR/2/2009/29/09

September 29, 2009

**To All Registered Merchant Bankers**

Dear Sirs,

**Sub.: Filing of offer documents with the Board under Securities and Exchange Board of India (Issue of Capital and Disclosure Requirements) Regulations, 2009**

1. This has reference to SEBI circular no. SEBI/CFD/DIL/ICDRR/1/2009/03/09 dated September 3, 2009, informing all registered merchant bankers that SEBI (referred to as “the Board”) has framed the SEBI (Issue of Capital and Disclosure Requirements) Regulations, 2009 (hereinafter referred to as “the ICDR Regulations”) and that pursuant to the notification of the ICDR Regulations on August 26, 2009, the SEBI (Disclosure and Investor Protection) Guidelines, 2000 stand rescinded.
2. As per sub-regulations (1) and (4) of regulation 6 and sub-regulation (2) of regulation 10 of the ICDR Regulations, an issuer making a public issue or rights issue (where the aggregate value of specified securities offered is fifty lakh rupees or more) is required, inter-alia, to file a draft offer document or an offer document, as the case may be, with the Board at various points of time.
3. Merchant bankers are hereby advised to file the draft offer documents or offer documents with a particular office of the Board based on the estimated issue size, as indicated below:

| Sr. No.                                              | Region in which registered office of the issuer falls | Jurisdictions covered in this region                                                                            | Name and address of SEBI office, where draft offer document/ offer document required to be filed                                                            |
|------------------------------------------------------|-------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Estimated issue size of upto fifty crore rupees      |                                                       |                                                                                                                 |                                                                                                                                                             |
| (i)                                                  | Northern Region                                       | Haryana, Himachal Pradesh, Jammu and Kashmir, Punjab, Uttar Pradesh, Chandigarh, Delhi, Uttarakhand             | SEBI Northern Regional Office, 5 <sup>th</sup> Floor, Bank of Baroda Building, 16 Sansad Marg, New Delhi - 110 001                                          |
| (ii)                                                 | Eastern Region                                        | Assam, Bihar, Manipur, Meghalaya, Nagaland, Orissa, West Bengal, Arunachal Pradesh, Mizoram, Tripura, Jharkhand | SEBI Eastern Regional Office, 3 <sup>rd</sup> Floor, L & T Chambers, 16 Camac Street, Kolkata - 700 017                                                     |
| (iii)                                                | Southern Region                                       | Andhra Pradesh, Karnataka, Kerala, Tamilnadu, Pondicherry                                                       | SEBI Southern Regional Office, D'Monte Building, 3 <sup>rd</sup> Floor, No. 32, D'monte Colony, TTK Road, Alwarpet, Chennai – 600 018                       |
| (iv)                                                 | Western Region                                        | Gujarat, Rajasthan                                                                                              | SEBI Western Regional Office, Unit No: 002, Ground Floor, SAKAR I, Near Gandhigram Railway Station, Opposite Nehru Bridge, Ashram Road, Ahmedabad – 380 009 |
|                                                      |                                                       | Maharashtra, Madhya Pradesh, Dadra and Nagar Haveli, Goa, Chhattisgarh                                          | SEBI Head Office, SEBI Bhavan, Plot No. C4-A, “G” Block, Bandra Kurla Complex, Bandra (East), Mumbai – 400051                                               |
| Estimated issue size greater than fifty crore rupees |                                                       |                                                                                                                 |                                                                                                                                                             |
| (i)                                                  | All Regions                                           | All jurisdictions                                                                                               | SEBI Bhavan, Plot No. C4-A, “G” Block, Bandra Kurla Complex, Bandra (East), Mumbai – 400051                                                                 |

4. Merchant Bankers are further advised to file five copies of the draft offer documents or offer documents with the office indicated above.
5. All merchant bankers are advised to comply with the requirements of this circular. This circular is issued in exercise of the powers conferred under sub-section (1) of section 11 of the Securities and Exchange Board of India Act, 1992 and is available on SEBI website at [www.sebi.gov.in](http://www.sebi.gov.in) under the categories "Legal Framework" and "Issues and Listing".

Yours faithfully,

Sanjay Purao